

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kathryn Duffy	Team: Team # 1	CCRB Case #: 201003289	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 03/07/2010 4:19 PM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 9/7/2011	EO SOL 9/7/2011	
Date/Time CV Reported Sun, 03/07/2010 4:42 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/11/2010 1:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Gagliardi	04941	941785	046 PCT
2. POM Thomas Dekoker	15364	940065	046 PCT
3. POM Luis Cruz	11146	941601	046 PCT
4. An officer			
5. POM Jeffrey Griffin	00443	934963	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Luis Cruz	Abuse: PO Luis Cruz entered and searched location § 87(2)(b) in the Bronx.	§ 87(2)(b)
B.POM Daniel Gagliardi	Abuse: PO Daniel Gagliardi entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
C.POM Thomas Dekoker	Abuse: PO Thomas Dekoker entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
D.POM Jeffrey Griffin	Abuse: PO Jeffrey Griffin entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
E.POM Jeffrey Griffin	Force: PO Jeffrey Griffin used physical force against § 87(2)(b)	§ 87(2)(b)
F.POM Luis Cruz	Force: PO Luis Cruz used physical force against § 87(2)(b)	§ 87(2)(b)
G.POM Daniel Gagliardi	Force: PO Daniel Gagliardi used physical force against § 87(2)(b)	§ 87(2)(b)
H.POM Thomas Dekoker	Force: PO Thomas Dekoker used physical force against § 87(2)(b)	§ 87(2)(b)
I. An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) outside § 87(2)(b) in the Bronx.	§ 87(2)(b)

Case Summary

The following complaint of police misconduct was reported by phone to IAB by § 87(2)(b) (who was not present for the incident) on behalf of her husband, § 87(2)(b) and son, § 87(2)(b) on March 7, 2010. The complaint was forwarded to the CCRB using log number 10-11619 and was received on March 11, 2010.

On March 7, 2010, at approximately 4:15 pm, members of the § 87(2)(b) family interacted with officers from the 46th Precinct, which resulted in the following allegations:

- **Allegation A – Abuse of Authority:** PO Luis Cruz entered and searched § 87(2)(b) § 87(2)(g)
- **Allegation B – Abuse of Authority:** PO Daniel Gagliardi entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.
- **Allegation C – Abuse of Authority:** PO Thomas Dekoker entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.
- **Allegation D – Abuse of Authority:** PO Jeffrey Griffin entered and searched § 87(2)(b) § 87(2)(b) the Bronx.

- **Allegation E – Force:** PO Luis Cruz used physical force against § 87(2)(b) § 87(2)(g)
- **Allegation F – Force:** PO Jeffrey Griffin used physical force against § 87(2)(b) § 87(2)(g)
- **Allegation G – Force:** PO Daniel Gagliardi used physical force against § 87(2)(b) § 87(2)(g)

- **Allegation H – Force:** PO Thomas Dekoker used physical force against § 87(2)(b) § 87(2)(b) § 87(2)(g)
- **Allegation I – Discourtesy:** An officer spoke rudely and obscenely to § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) *old Hispanic male, 5'8", 185 pounds, brown hair, brown eyes,* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided an in-person interview at the CCRB on March 31, 2010. His statement is summarized below. On Sunday, March 7, 2010, § 87(2)(b) was attending a family get-together at his parents' apartment, located at § 87(2)(b) § 87(2)(b) § 87(2)(b).

parents, § 87(2)(b) and § 87(2)(b) were present, as were § 87(2)(b)'s grandmother, § 87(2)(b), sister, § 87(2)(b), sister-in-law, § 87(2)(b), wife, § 87(2)(b), son, § 87(2)(b) and two grade-school-age daughters.

At approximately 4:00 pm, § 87(2)(b) and § 87(2)(b) left the apartment to go to the store. Five minutes later, § 87(2)(b) returned to the apartment without § 87(2)(b) and told § 87(2)(b) that he had stopped to talk to police officers on the § 87(2)(b) of the building.

§ 87(2)(b) was curious about what his father was doing, so he left the apartment (on the § 87(2)(b)) and walked the short distance down the hallway to the stairwell. He could hear § 87(2)(b) engaged in conversation with someone on the § 87(2)(b) but could not see them. As he descended the stairs, he was able to see at least one police officer, who he identified by nameplate as PO Cruz. There were five or six other building residents in addition to § 87(2)(b) gathered near the staircase in the § 87(2)(b) hallway, but § 87(2)(b)'s view was obscured because he did not walk all the way down to the § 87(2)(b) floor. He could tell that § 87(2)(b) was confronting PO Cruz about something, but he couldn't get the context and didn't know what had happened. He thought PO Cruz was asking § 87(2)(b) for identification, but § 87(2)(b) only spoke Spanish and § 87(2)(b) was not sure if he understood the officer.

§ 87(2)(b) interrupted and asked PO Cruz what was the problem. PO Cruz ignored him but told § 87(2)(b) to go back upstairs. He protested, as did § 87(2)(b) that he lived in the building and was trying to go to the store, but PO Cruz repeated his order to go back upstairs. § 87(2)(b) said, "But I live here," and PO Cruz informed him that if he did not go upstairs, he would have to produce identification.

Before § 87(2)(b) could produce identification, he heard a voice say, "Get him." The people gathered on the § 87(2)(b) (five or six people from the building who § 87(2)(b) could not otherwise identify) and § 87(2)(b) all began to run when they heard this, and § 87(2)(b) reacted by crossing both of his arms around the front of his body and running up the stairs toward his § 87(2)(b) floor apartment. He said that he held his arms in such a way to show that he was not armed.

On the § 87(2)(b), § 87(2)(b) ran inside his apartment door, which had been left hanging open when he initially left the apartment. He could hear footsteps behind him and knew that police officers were following him into the apartment. § 87(2)(b) ran inside, through one living area that was populated by members of his family, and into a second room that was furnished with two sofas and a small end table. § 87(2)(b) felt an officer grab him by the left shoulder from behind and move him forward and to the right, which caused him to fall face-down into one of the sofas. § 87(2)(b) felt punching and knees or feet pushing into his back while officers grabbed his arms. He was not trying to resist, but with his face pushed into the soft upholstery of the sofa, he could not breathe, and he began to try to arch his body backward so that he could move his face from the cushioning and get some air. As he did this, officers fought to keep his head down, and after a few moments he lost consciousness due to oxygen deprivation.

Because § 87(2)(b)'s head was down, he could not see the officers involved or describe which officer performed which action. However, he knew that the involved officers included four male officers dressed in uniform, one of whom was PO Cruz.

§ 87(2)(b) initially stated that he could not remember how he left his apartment due to his loss of consciousness, but he later said that two of the officers escorted him to the elevator while he was wearing handcuffs. One of these officers, identified by the investigation as PO Jeffrey Griffin from the 46th Precinct, attempted to shove his head into the wall by grabbing his neck and pushing him in the direction of the wall, but § 87(2)(b) used his shoulder to block the wall and was not injured. At the same time, one of the officers pointed out a camera in the elevator to PO Griffin and said that he shouldn't do anything that could be captured on camera.

§ 87(2)(b) did not seek medical treatment.

Victim: § 87(2)(b)

- § 87(2)(b) -old Hispanic male, 5'9", 165 pounds, § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a statement at the CCRB on March 31, 2010, § 87(2)(g)

When § 87(2)(b) ran into the apartment with four officers following close behind, he was shouting, "Don't touch me!" The officers pushed him down onto the couch, and then jumped on him to place him in handcuffs. An officer who § 87(2)(b) described as a 5'6" tall Hispanic male officer who was bald and had a husky or fat build, who fit the physical description of PO Gagliardi but who § 87(2)(b) thought was PO Cruz based on his nameplate, was elbowing § 87(2)(b) in the head. This officer shouted at one of his aunts to "shut up" and to "relax" at some point during the incident. A tall (6'1" or taller) white officer with an average build, identified by the investigation as PO Dekoker, stood back and did not participate in the efforts to secure § 87(2)(b)

§ 87(2)(b) asked PO Dekoker to get his fellow officers to back off lest they suffocate his father. § 87(2)(b)'s grandfather, § 87(2)(b) entered the room, and as the officers picked § 87(2)(b) up off the couch, he became upset and started to shout at the officers to stop and let go of his son. While two officers pulled § 87(2)(b) to the door of the apartment, a third kned § 87(2)(b) in the stomach and pushed him onto another couch in the room.

§ 87(2)(b) followed the officers and his father into the hallway and saw the officer who he referred to as PO Cruz attempt to push § 87(2)(b)'s head into the wall while he was handcuffed. When he saw this, § 87(2)(b) spoke to one of the officers and asked him to get PO Cruz to relax. The officer turned to § 87(2)(b) and said, "You're going too," and placed him in handcuffs. The two officers brought § 87(2)(b) and § 87(2)(b) the elevator together and led them outside to a police vehicle;

§ 87(2)(b) made no mention of an officer pushing his father's head into the wall on the elevator, or of another officer pointing out the camera capturing their actions on video. Many police units had responded to the area and were parked all around the building. While § 87(2)(b) tried to explain to PO Cruz that he was about to deploy for the military and could not be arrested, an officer standing outside the building, described by § 87(2)(b) as an Asian male officer dressed in uniform who stood 5'11" and had long dark hair, heard him and said "Shut the fuck up."

Victim: § 87(2)(b)

- § 87(2)(b) -old Hispanic male, 5'6", 170 pounds, § 87(2)(b)

CCRB Testimony

§ 87(2)(b) made an in-person statement in Spanish at his apartment on April 19, 2010. § 87(2)(g)

§ 87(2)(b). When § 87(2)(b) and § 87(2)(b) left the apartment to go to the store, they noticed several police officers on the § 87(2)(b) landing of the building speaking to his neighbor, § 87(2)(b), and her son, § 87(2)(b) § 87(2)(g)

§ 87(2)(b) but was only able to describe the remaining officers, PO Gagliardi and PO Dekoker, as white males.

§ 87(2)(b) stepped down on the staircase and asked § 87(2)(b) what was going on. He learned that § 87(2)(b) was accused of writing graffiti. § 87(2)(b) spoke to the officers on § 87(2)(b)'s behalf, but PO Cruz told § 87(2)(b) in Spanish, "Shut up and go upstairs." § 87(2)(b) did not respond. At that point, § 87(2)(b) joined § 87(2)(b) and asked, "Papi, what happened?" § 87(2)(g)

§ 87(2)(b) ran into the apartment behind the officers, who were chasing § 87(2)(b). The rest of the family stood around and watched but § 87(2)(b) § 87(2)(b)'s sister, began arguing with PO Griffin. § 87(2)(b) did not know what they were saying because he did not understand English. Meanwhile, § 87(2)(b) observed the officers grab § 87(2)(b) and lift him up and down while they kicked him in the right side of the ribs. During the fight, the TV set and the china cabinet fell over, but they were not damaged. § 87(2)(b) ran toward the group of officers, saying, "You are going to kill my son."

PO Griffin pushed § 87(2)(b) once on his chest and he landed on the sofa. PO Griffin then placed his knee on § 87(2)(b)'s chest to hold him down and grabbed his shirt by his neck. When § 87(2)(b) was in handcuffs, PO Griffin released § 87(2)(b). The officers led § 87(2)(b) out of the apartment. As they did so, § 87(2)(b) approached the officers leading his father and pushed one of them. He was also arrested. As the officers entered the elevator with § 87(2)(b)'s son and grandson, he followed and told the officers that what they did was wrong. One of the officers, who he could not describe, pushed him and he stumbled back against a wall.

Witness: § 87(2)(b)

- § 87(2)(b) -old Hispanic female, 5'4", 200 pounds, § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed in Spanish at § 87(2)(b) on April 19, 2010, § 87(2)(g)

NYPD Statements:

Subject Officer: PO JEFFREY GRIFFIN

- § 87(2)(b) -old white male, 6'0", 250 pounds, black hair, blue eyes
- Assigned to sector E/F, worked in a marked vehicle dressed in uniform with PO Cruz from 3:00 pm until 11:35 pm

Memo Book Entry

CCRB Testimony

PO Griffin prepared a memo book entry in regard to this incident on March 7, 2010, and provided an in-person statement to the CCRB on September 27, 2010. § 87(2)(g)

On March 7, 2010, at 4:15 pm, PO Griffin and PO Cruz received a radio run code 10-39, or "other crime." The criminal complainant met them outside of her building and said three juveniles had spray-painted her door. She pointed out a group down the block and identified them as the perpetrators. The officers picked up the boys in their RMP and brought them back to the § 87(2)(b) floor of the building, where a discussion ensued between the criminal complainant, the boys, and the boys' parents. Shortly thereafter PO Dekoker and PO Gagliardi arrived. While they were discussing the situation, § 87(2)(b) came downstairs from the § 87(2)(b) floor and started to interfere. PO Griffin was engaged in conversation with one of the boys' mothers, and he heard § 87(2)(b) interject repeatedly, saying things like, "Leave the kids alone." He was told to go away several times and eventually PO Cruz

approached him. § 87(2)(b) shoved PO Cruz with both hands and then ran upstairs. PO Cruz didn't lose his footing or sustain any injuries from the shove.

PO Griffin stayed on the § 87(2)(b) floor with the criminal complainant until he heard a loud commotion on the § 87(2)(b) floor, and then ran upstairs after his fellow officers. He entered apartment § 87(2)(b), to which the door was open, and he saw Officers Cruz, Gagliardi, and Dekoker struggling with § 87(2)(b) toward the back wall of the apartment. There were other people present and they were in his way, but willingly moved aside when he instructed them to do so. PO Griffin moved in between the officers and § 87(2)(b) and told him that he had gotten himself involved in something that was not his business, and that he should step outside and conduct the arrest in as easy a manner as possible. § 87(2)(b) refused, turned his back, and put his hands in his front pants pockets. Because the officers didn't know what § 87(2)(b) was reaching for, they reached for his arms and attempted to handcuff him, but he struggled. As this happened, family members began to jump on the officers' backs. PO Griffin was able to secure one cuff, but required the assistance of the other officers to secure the second cuff. § 87(2)(b) then fell forward onto a couch and tried to put his hands under him to prevent being handcuffed. PO Griffin was aware that family members were trying to pull the other officers off of § 87(2)(b). He could only describe one older male, because his attention was focused on § 87(2)(b) but he thought this individual was fighting with PO Dekoker. The officers were eventually able to bring § 87(2)(b) outside.

In the hallway, § 87(2)(b)'s son, § 87(2)(b) ran after his father and ended up pushing PO Dekoker, who then handcuffed and placed him under arrest as well. § 87(2)(b) was never pushed against a wall of the building. Outside the building, PO Griffin did not see any Asian male officers, nor did he hear any officer speak discourteously to § 87(2)(b). Both men were taken to the stationhouse for arrest processing.

Subject Officer: PO LUIS CRUZ

- § 87(2)(b) -old Hispanic male, 5'11, 200 pounds, black hair, black eyes
- Assignment, partner, vehicle, uniform or plainclothes and tour Assigned to sector E/F with PO Griffin, dressed in uniform, marked RMP, worked from 4:00 pm until 11:05 pm

Memo

Criminal Complaint Report

CCRB Testimony

PO Cruz prepared a memo book entry and Criminal Complaint Report regarding this incident on March 7, 2010, and provided a statement to the CCRB on August 2, 2010. § 87(2)(g)

§ 87(2)(g) During the initial conversation with the criminal complainant, a man identified by PO Cruz as § 87(2)(b) sat on the stairway and observed the conversation between the officers and the criminal complainant, but he didn't speak or interfere in the graffiti investigation. Later, when § 87(2)(b) began to interact with the officers, he made verbal threats in Spanish to PO Cruz, specifically that he was going to push him. He also told the criminal complainant that she was causing trouble with the three juveniles who had been stopped, and told her to watch out what happened to her. PO Cruz told him four or five times to go back to his apartment, and he responded by telling PO Cruz to go fuck himself and that he was a pussy. At this point PO Cruz walked toward § 87(2)(b) who was standing on the staircase, to issue him a summons. When PO Cruz was close enough, § 87(2)(b) pushed him with both hands in the chest, and he fell back about two steps. He then turned and ran back up the stairs.

When the officers chased § 87(2)(b) into an apartment, PO Cruz was the first officer to enter. § 87(2)(b) ran straight through the apartment to the back, near some

windows, and the officers advised him that he was under arrest. § 87(2)(b) said that he wasn't going and they couldn't make him leave. He began to act violent by swinging his arms, and then reached into his pockets. At this point, the officers attempted to handcuff him. The other family members appeared to be observing, with the exception of § 87(2)(b)'s son, § 87(2)(b) who jumped on PO Cruz to try to assist his father, but PO Dekoker, who was trying to control the other occupants of the apartment, pushed him back. § 87(2)(b)'s father, § 87(2)(b) also tried to come closer and assist § 87(2)(b) and PO Dekoker pushed him backwards as well.

On the way out of the building in the hallway, § 87(2)(b) § 87(2)(b) continued to struggle. PO Cruz said that he was physically dragged out of the apartment and was never compliant with the officers. § 87(2)(b) may have bumped into the wall as he was resisting, but PO Cruz didn't specifically remember this, nor did he hear § 87(2)(b) complain about being pushed into the wall. He denied pushing § 87(2)(b) into a wall at any time.

Subject: PO DANIEL GAGLIARDI

- *White male, 5'8", 240 pounds, brown hair, brown eyes*
- *Assigned to Robbery Auto, worked from 3:00 pm until 11:35 pm with PO Dekoker, dressed in uniform, used a marked vehicle*

Memo Book

CCRB Testimony

PO Gagliardi prepared a memo book entry regarding this incident on March 7, 2010, and was interviewed at the CCRB on August 2, 2010. § 87(2)(g)

§ 87(2)(b) He noted that PO Dekoker performed rear security, stopping family members from physically interfering with § 87(2)(b)'s arrest. Family members tried to push forward toward the officers and separate them from § 87(2)(b) specifically § 87(2)(b) who jumped toward him and tried to stop him from handcuffing § 87(2)(b). PO Gagliardi also recalled § 87(2)(b) pushing an officer on the way out of the apartment.

PO Gagliardi said that family members were jumping on the officers the whole way out of the apartment, but they were not all arrested because the officers did not have sufficient manpower to address them, and their main focus was on § 87(2)(b) because he pushed PO Cruz. § 87(2)(b) was arrested because he followed the group of officers out of the apartment and continued to try to free his father in the hallway of the § 87(2)(b). PO Gagliardi did not see § 87(2)(b) § 87(2)(b) interact with any Asian male officers outside the building.

Subject Officer: PO THOMAS DEKOKER

- § 87(2)(b)-old white male, 6'2", 240 pounds, brown hair, blue eyes
- *Assigned to patrol with PO Gagliardi from 3:00 pm until 11:35 pm, dressed in uniform, used a marked vehicle*

CCRB Testimony

PO Dekoker made an in-person statement at the CCRB on September 20, 2010, § 87(2)(g)

§ 87(2)(g)

PO Dekoker stood about four feet from the officers struggling with § 87(2)(b) inside the apartment and monitored the family members to assure that none of them jumped into the struggle. § 87(2)(b) became involved in the struggle with the officers and he was also arrested. However, PO Dekoker did not observe this and was not one of the officers engaged with the younger § 87(2)(b). Although the civilians present used profanity, PO Dekoker did not recall any of the officers present using profanity in response. He didn't observe § 87(2)(b) in a position that would have inhibited his breathing, and he didn't hear any complaints from § 87(2)(b) or his family members that he could not breathe. He didn't recall any involvement by the grandfather, § 87(2)(b) and asserted that had anyone else interfered with § 87(2)(b)'s arrest they would have been arrested. He denied pushing any older gentlemen.

He could not identify an Asian male officer with longer hair, and he denied hearing any officers say anything discourteous outside the building.

NYPD Documents

Command Log

The 46th Precinct Command Log entries documenting the arrests of § 87(2)(b) and § 87(2)(b) note that both men appear to be in normal physical / mental condition.

SPRINT

The SPRINT report connected with this incident shows that a female called to report spray paint on the door of her apartment, § 87(2)(b), at about 4:15 pm on the incident date. A call for assistance came from police units at the location at approximately 4:45 pm, but sector A reported that they were in the elevator with two arrested persons a minute later. By 4:49 pm, a sergeant had accounted for all units and determined that there were no injured members of the service or civilians. At 4:45 pm in a duplicate job, control requested a patrol sergeant at the location at the request of an IAB detective, Det. Jean.

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- The § 87(2)(b) family has not filed a Notice of Claim with the City of New York as of the date of this report.

Civilians Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) involving § 87(2)(b), or § 87(2)(b).

Subject Officers CCRB History

- PO Griffin has been a member of the service for six years, and PO Cruz, PO Gagliardi, and PO Dekoker have all been members of the service for four years. There are no substantiated CCRB allegations against any of the subject officers.

Conclusion

Identification of Subject Officers

Officers Griffin, Cruz, Gagliardi and Dekoker acknowledged that they interacted with the § 87(2)(b) family. § 87(2)(g) § 87(2)(g) § 87(2)(g). There was no record of an Asian male officer working patrol at the time or responding to the call for assistance, and none of the officers interviewed could identify an officer who fit this description. § 87(2)(g) § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Luis Cruz entered and searched [REDACTED] in the Bronx. § 87(2)(b)

Allegation B - Abuse of Authority: PO Daniel Gagliardi entered and searched § 87(2)(b) in the Bronx.

Allegation C – Abuse of Authority: PO Thomas Dekoker entered and searched § 87(2)(b) in the Bronx.

Allegation D – Abuse of Authority: PO Jeffrey Griffin entered and searched § 87(2)(b) in the Bronx.

It is not in dispute that the subject officers chased § 87(2)(b) upstairs and through the hallway of the fifth floor, then into his apartment, § 87(2)(b) said that PO Cruz was approaching him to ask for identification, and that he ran away when he heard an unidentified officer say, "Get him,,"; all of the interviewed officers asserted that § 87(2)(b) pushed PO Cruz prior to the chase. § 87(2)(g) PO Cruz added that § 87(2)(b) made verbal threats in Spanish. § 87(2)(g)

New York State Law allows officers to enter an apartment or other private residence when they are in pursuit of an individual who they have probable cause to believe has just committed a crime, and has fled to the specific location being entered. § 87(2)(g)

§ 87(2)(b) the officers in pursuit of § 87(2)(b) saw him run down the hall and into apartment § 87(2)(b) where they followed him through an open door. § 87(2)(g)

Allegation E – Force: PO Luis Cruz used physical force against § 87(2)(b)

Allegation F – Force: PO Jeffrey Griffin used physical force against § 87(2)(b)

Allegation G – Force: PO Daniel Gagliardi used physical force against § 87(2)(b)

§ 87(2)(b) admitted to running from the officers with his arms wrapped around his body, and § 87(2)(b) stated that he heard his father tell the officers that they were not allowed to touch him. § 87(2)(b) went on to say that he involuntarily struggled against the officers because his breathing was obstructed by the soft sofa cushions on which he was laying. He said that he felt knees and possible punches to his back but could not see

to attribute these actions to any particular officer. § 87(2)(g)

§ 87(2)(g)

Allegation H – Force: PO Thomas Dekoker used physical force against § 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

No officer admitted to using force against § 87(2)(b) although PO Griffin and PO Gagliardi thought PO Dekoker might have pushed him aside during the struggle. § 87(2)(b) did not describe PO Dekoker using force against him, but rather an officer who fit the physical description of PO Griffin, who in turn asserted that he was engaged in the struggle to handcuff § 87(2)(b) and not dealing with the other members of the § 87(2)(b) family. PO Dekoker stated that he stood aside and kept other family members from interfering with § 87(2)(b)'s handcuffing. § 87(2)(b) alleged that he saw an officer knee § 87(2)(b) in the stomach; § 87(2)(g) § 87(2)(b) alleged that he was pushed to a sitting position on the sofa, from which an officer held him back by placing a knee on his chest and holding the collar of his shirt. § 87(2)(g)

Allegation I – Discourtesy: An officer spoke rudely or obscenely to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that an Asian male officer dressed in uniform told him to “shut the fuck up” as he was being escorted to a police vehicle after his arrest. § 87(2)(g)

Team: ____1____

Investigator: _____ Kathryn Duffy _____ November 9, 2010 _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date